



PAKISTAN BAIT-UL-MAL (AMENDMENT) ORDINANCE, 2002

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PAKISTAN BAIT-UL-MAL (AMENDMENT) ORDINANCE, 2002

ORDINANCE XC OF 2002

An Ordinance further to amend the Pakistan Bait-ul-Mal Act, 1991

[dated 26-10-2002]

Whereas it is expedient further to amend the Pakistan Bait-ul-Mal Act, 1991 (I of 1992), for the purpose hereinafter appearing;

And whereas the President is satisfied that circumstances exist which render it necessary to take immediate action;

Now, therefore, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Bait-ul-Mal (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Omnibus amendment Act I of 1992.—In the Pakistan Bait-ul-Mal Act, 1991 (I of 1992), hereinafter referred to as the said Act, for the words brackets "Chairman (Ameen)", wherever occurring, the words "Chairperson (Ameen)" shall be substituted.

3. Amendment of section 2, Act I of 1992.—In the said Act, in section 2,-

(a) In clause (b), for the words "Board of Management of Bait-ul-Mal" the words "Bait-ul-Mal Board" shall be substituted: and

(b) after clause (c), the following new clause shall be inserted, namely:-

"(ca) "employee" means an officer, servant, expert, consultant or adviser appointed under section 15;

(cb) "Managing Director" means the Managing Director of the Board;"

4. Substitution of Chapter III Act I of 1992.---In the said Act, for Chapter III, the following shall be substituted, namely,-

"CHAPTER III

THE BAIT-UL-MAL BOARD

5. Constitution of the Bait-ul-Mal Board.—(1) The Federal Government shall, by notification of the official Gazette constitute a Bait-ul-Mal Board for administration of the Bait-ul-Mal.

(2) The Board shall consist of-

- (i) Secretary, Government of Pakistan, Ministry of Women Development, Social Welfare and Special Education, who shall be its ex officio Chairperson.
- (ii) Managing Director, Bait-ul-Mal;
- (iii) at least five non-official Members to be appointed by the Federal Government one each from the Provinces and one to represent Islamabad Capital Territory, Northern Areas or Azad Jammu and Kashmir:

Provided that at least one of the non-official Members shall be a woman:

- (iv) a representative of the Federal Ministry of Religious Affairs, Zakat and Ushr;
- (v) a representative of the Federal Ministry of Minorities Affairs; and
- (vi) a representative of the Federal Ministry of Finance.

5. Substitution of Chapter IV, Act I of 1992.- In the said Act, for Chapter IV the following shall be substituted, namely,-

5A. Functions of the Bait-ul-Mal Board.---The Board shall perform the following functions, namely,-

- (a) policy formulation,
 - (b) planning, including consideration and approval of annual plan of work and budget;
 - (c) consideration of audit statement of accounts;
 - (d) to receive progress reports;
 - (e) to ensure implementation of approved plan, programmes, budget and ensure transparent and accountable administration;
 - (f) co-ordination with poverty alleviation programmes of the Government in public and private sectors; and
 - (g) any other functions as may be prescribed. "
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"CHAPTER IV

TERMS AND CONDITIONS OF OFFICE OF MEMBERS

6. Selection criteria for non-official Members.—The non-official Members shall be appointed from amongst the ulema, social workers, jurists, elected representatives and persons well-versed in Islamic law and jurisprudence and the persons who enjoy good reputation for their honesty, integrity and devotion to Islamic ideology and who genuinely believe in, and practice moral values as enjoined by the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah.

7. Terms and conditions of office of non-official Members.—(1) The non-official Members shall hold office during the pleasure of the Federal Government.

(2) The non-official Members shall not draw any salary, but shall be entitled to such facilities and privileges as may be prescribed from time to time.

(3) Subject to subsection (4), a non-official Member may, by writing under his hand addressed to the Federal Government through the Chairman, resign his office.

(4) The resignation tendered by a non-official Member shall not take effect until accepted by the Federal Government".

7-A. Acting Chairperson (Ameen).—At any time when the office of Chairperson (Ameen) is vacant the senior most member in age shall, for a period not exceeding sixty days temporarily perform the functions of Chairperson (Ameen)."

8. Substitution of Chapter VI, Act I of 1992.---In the said Act, for Chapter VI the following shall be substituted, namely,-

"CHAPTER VI

APPOINTMENT AND POWERS OF THE MANAGING DIRECTOR

9. Appointment and powers of the Managing Director.—(1) There shall be a Managing Director of the Board who shall be appointed by the Federal Government.

(2) The Managing Director shall exercise all administrative and financial powers of the Bait-ul-Mal under this Act;

Provided that every appointment made or administrative or financial powers exercised by the Managing Director shall be reported to the Board, without unnecessary delay, for its information."

10. Amendment of section 12, Act I of 1992.—In the said Act, in section 12, for the words "Prime Minister of Pakistan" the words and commas "the Ministry of Women Development, Social Welfare and Special Education, Government of Pakistan" shall be substituted.

